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file

TO : FE - Mr. Rusk

DATE September 22, 1950.

FROM : CA - Mr. Clubb

357.AD

SUBJECT: Comments on the British Draft Resolution Respecting Formosa for the General Assembly

DC/R Central Files

The following comments respecting the British draft resolution on Formosa contained in New York's DELGA 16, September 21 are submitted, for particular reference in connection with your conversation with Mr. Dening tomorrow in New York.

We ourselves have no draft resolution respecting the Formosa case and it seems probable that any such draft resolution would have to be circulated for clearance with the Government or be submitted to the NSC. It is believed that until we have a cleared position respecting a General Assembly resolution on Formosa, any comments which you might make to Mr. Dening should be informal and not representing a fixed position of this Government. It is to be assumed, however, that we are headed in the direction of (a) temporary neutralization of Formosa and (b) final disposition of the problem by international agreement.

We note the special prominence given to China's claim to Formosa in the British draft. The British and the Indians, as you know, have argued strongly that the General Assembly resolution should contain some reference to the Cairo Declaration. We likewise see considerable political advantage in including reference to the Cairo Declaration but believe that better balance would be achieved by including the following as point (C) in the first paragraph of the British draft: "(C) That no formal action transferring sovereignty to China has yet occurred;". With the same objective of achieving better balance we would suggest rewording paragraph (3) along the following lines: "Decides to establish a commission which, bearing in mind China's claim as set out above and taking into account the interests of the people of Formosa, should study the problem fully and submit a report to the General Assembly containing recommendations for the future of Formosa. The commission should consult with all interested parties, including both Chinese claimants;".

We believe that recommendations (A) and (B) should, if possible, be strengthened. The following suggested alterations

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alterations might be explored with Mr. Dening. A paragraph along these lines might be inserted immediately preceding the last paragraph: "Recommends that the Security Council consider failure of either party to abide by recommendations (A) and (B), preceding, to be prima facie evidence of aggression within the meaning of the Charter;".

The following paragraph might be inserted either immediately preceding the suggested paragraph quoted above or in place of that paragraph: "Authorizes the Secretary General (or the commission) to obtain the formal binding agreement of the National Government and the Central People's Government to recommendations (A) and (B);". Consideration might be given to adding this paragraph immediately following: "Recommends to the U.S. that it terminate the present announced mission of its naval forces in the area of Formosa upon notification by the Secretary General (or the commission) that agreement referred to in the preceding paragraph has been received;".

The above suggestions have not been discussed with other interested offices of the Department and should be considered as tentative and exploratory, only.

FE:CA:WWStuart:ah

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